

FIRST ENDORSEMENT

Chief Prosecutor Andre D. Applewhite, Civilian Complaint Review Board to Deputy Commissioner Paul M. Gamble, Sr., Department Advocate's Officer, March 19, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS Number 2022-24911 against Police Officer Joseph Canale, Tax Registry Number 960317. This case was conferenced on February 8, 2024, before Assistant Deputy Commissioner-Trials Anne Stone, who approved the negotiated plea to Charges and Specifications but disagreed with CCRB's recommended penalty. ADCT Stone recommended a "higher penalty" but did not indicate a specific number. In addition to the higher penalty, ADCT Stone recommended, "individualized training." CCRB maintains that the plea to the Charges and Specifications with the recommendation of the forfeiture of EIGHTEEN (18) vacation days is an appropriate penalty.

Andre D. Applewhite

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Chief Prosecutor, APU
New York City Civilian Complaint Review Board



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2022-24911
BOOK & PAGE NO. Page 1 of 3
PERSONNEL ORDER NO.

RANK/TITLE POM	SURNAME, CANALE	FIRST JOSEPH	M.I. N	COMMAND HOUSING PSA 7
SHIELD NO. 10524	TAX REGISTRY NO. 960317	SOCIAL SECURITY NO.		DATE APPOINTED 01/06/2016
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1 . Police Officer Joseph CANALE, on or about February 21, 2020, at approximately 1722, while assigned to PSA 7 and on duty, in the vicinity of 720 Westchester Avenue, Bronx County, abused his authority as a member of the New York City Police Department, in that he searched the vehicle in which § 87(2)(b) § 87(2)(b) and § 87(2)(b) were occupants without sufficient legal authority.	PLEADED GUILTY	VACATION DAYS 18.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2 . Police Officer Joseph CANALE, on or about February 21 , 2020, at approximately 1722, while assigned to PSA 7 and on duty, in the vicinity of 720 Westchester Avenue, Bronx County, abused his authority as a member of the New York City Police Department, in that he interfered with § 87(2)(b) use of a cellphone without police necessity.	PLEADED GUILTY	
3 . Police Officer Joseph CANALE, on or about February 21, 2020, at approximately 1722, while assigned to PSA 7 and on duty, in the vicinity of 720 Westchester Avenue, Bronx County, abused his authority as a member of the New York City Police Department, in that he searched § 87(2)(b) cellphone without sufficient legal authority.	PLEADED GUILTY	
4 . Police Officer Joseph CANALE, on or about February 21 , 2020, at approximately 1722, while assigned to PSA 7 and	PLEADED GUILTY	

DC Brown
FIRST DEPUTY COMMISSIONER

06/27/24
DATE

POLICE COMMISSIONER'S APPROVAL

☐ Approved

☒ Disapproved

☐ Other Action (Describe)

Edward A. Cab...
POLICE COMMISSIONER

8/16/24
DATE

**DISPOSITION OF CHARGES**

PD 468-142(Rev. 8-89)-2

CASE NO.
2022-24911BOOK & PAGE NO.
Page 2 of 3

PERSONNEL ORDER NO.

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SHIELD NO. 10524	TAX REGISTRY NO. 960317	SOCIAL SECURITY NO.	DATE APPOINTED 01/06/2016	
RANK/NAME OF COMPLAINANT				COMMAND
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TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
on duty, in the vicinity of 720 Westchester Avenue, Bronx County, abused his authority as a member of the New York City Police Department, in that he deleted information on § 87(2)(b) cellphone without police necessity.		
5 . Police Officer Joseph CANALE, on or about February 21, 2020, at approximately 1722, while assigned to PSA 7 and on duty, in the vicinity of 720 Westchester Avenue, Bronx County, abused his authority as a member of the New York City Police Department, in that he failed to provide § 87(2)(b) with a business card without police necessity.	PLEADED GUILTY	
6 . Police Officer Joseph CANALE, on or about February 21 , 2020, at approximately 1722, while assigned to PSA 7 and on duty, in the vicinity of 720 Westchester Avenue, Bronx County, abused his authority as a member of the New York City Police Department, in that he failed to provide § 87(2)(b) with a business card without police necessity.	PLEADED GUILTY	
7 . Police Officer Joseph CANALE, on or about February 21 , 2020, at approximately 1722, while assigned to PSA 7 and on duty, in the vicinity of 720 Westchester Avenue, Bronx County, abused his authority as a member of the New York City Police	PLEADED GUILTY	

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FIRST DEPUTY COMMISSIONER

06/27/24
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POLICE COMMISSIONER'S APPROVAL☐ Approved☒ Disapproved☐ Other Action (Describe)

Edward A. Cab...
POLICE COMMISSIONER

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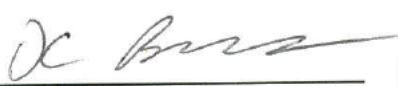


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SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
Department, in that he failed to provide § 87(2)(b) with a business card without police necessity. 8 . Police Officer Joseph CANALE, on or about February 10, 2021 , at approximately 1029, while assigned to PSA 7 and on duty, in the vicinity of 100 Church Street, New York County, provided an inaccurate statement to CCRB, in that he stated that he requested § 87(2)(b) license and registration multiple times, and numerous subjects exited their car yelling while aggressively approaching the RMP screaming obscenities in the middle of the street causing a hazardous condition while recording officers on mobile devices as officers resumed patrol.	PLEADED GUILTY	


FIRST DEPUTY COMMISSIONER 06/27/24
DATE

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☒ Disapproved

☐ Other Action (Describe)


POLICE COMMISSIONER 8/16/24
DATE


Anthony S. Marino
Deputy Chief

AM/rn